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EDS and Pure Advantage seek tightening of forest harvesting rules to prevent slash and sediment

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The Environmental Defence Society and Pure Advantage have filed a joint submission to the Ministerial Inquiry into Land Use practices in Tairāwhiti and have called for sweeping changes to the regulations governing plantation forestry in New Zealand.

“EDS published a report in 2019 that recommended changes to the National Environmental Standards on Plantation Forestry (NesPF) to reduce the ongoing damage to the environment from slash and sediment,” said EDS CEO Gary Taylor.

“Those changes were not acted on, largely because of the pervasive influence of the forest companies on government agencies.

“In our submission to the Ministerial Inquiry filed this week, we pointed out that the repetitive damage from poorly regulated forestry operations is a national problem and warrants a fundamental shift in where we plant, what we plant and how we harvest. We have also called

for significant changes to the Emissions Trading Scheme (ETS) which are providing perverse incentives given the need to reduce gross emissions,” Mr Taylor said.

The Executive Director of Pure Advantage, Simon Millar, said that the lesson from Gabrielle is that we need to work more closely with nature.

“The Inquiry presents an opportunity to reset the rules for land use in Tairāwhiti and elsewhere to one where diverse native forests, agricultural systems, sustainable tree plantations, horticulture and human communities are interwoven creating a positive balance of environmental, social and economic benefits.

“We need to recloak Papatūānuku to restore the whenua for climate resilience, carbon sequestration, biodiversity conservation and economic sustainability,” said Mr Millar.

In the short term the submission recommends:

- Strengthening the NESPF to:
 - Reverse the permitted activity status approach to high-intensity, high risk industrial forestry activities;
 - Revise or replace the Erosion Susceptibility Classification with a higher-resolution hazard and risk mapping tool so as to better determine appropriate regulatory controls on a site-specific basis;
 - Introduce regulatory nuance in relation to harvesting practices, particularly in relation to erosion prone steep lands and hill country. Commercial afforestation and clear fell harvesting on vulnerable slopes should be prohibited, and natural or assisted reversion to permanent indigenous forests required. In all other cases, forest operators wanting to clear fell should be subject to a reverse burden, with clear felling permitted only where it can be established that it will not result in significant adverse environmental effects. Spatial and temporal restrictions should apply, as they do in comparable jurisdictions.
 - Require slash to be processed on-site or disposed of off-site so that the risk of slash pile mobilisation, collapse or spontaneous ignition, and deposition of slash into water bodies (and associated need for slash traps), is eliminated;
 - Mandate certified and audited forest lifecycle management plans, comparable to those required for farms; and
 - Make clear that the Ministry for the Environment is the lead agency responsible for overseeing national environmental standards for forestry (not Te Uru Rakau (Ministry for Primary Industries)).
- Government should invest in a transition to less environmentally destructive silvicultural and harvesting systems, which are the norm in countries with similar topographical profiles. Continuous cover forestry should become widespread practice.
- Strengthening industry compliance through:
 - Significant pecuniary penalties and the revocation or suspension of resource consents (both are currently proposed under the Natural and Built Environment Bill, which also proposes to make insurance against fines unlawful);
 - Requiring a performance bond or guarantee;

- Exploring whether continued Forest Stewardship Council certification following regular and/or significant regulatory non-compliance constitutes misleading or deceptive conduct under the Fair Trading Act; and
- Tightening up the Overseas Investment Office's enforcement of the "good character" requirement for non-compliant offshore forest investors and grounds for requiring the disposal of forest assets.
- Addressing the bio-perversities of the ETS by levelling the playing field for natives. To achieve this, we recommend:
 - Amending the ETS so that:
 - the carbon look-up tables:
 - extend beyond 50 years to recognise the true total carbon stocks of native forests, which accrue over a much longer timespan; and
 - recognise the sequestration rates of different native species relative to age and location, as well as the sequestration rates of planted and well managed native forests stands (not just regenerating native shrubland);
 - supply chain emissions associated with plantation forestry are accounted for;
 - exotic species are excluded from the permanent forest category; and
 - NZUs generated by natives attract a premium;
 - Establishing a complementary biodiversity payment scheme and a continuous cover forestry fund; and
 - Supporting an ambitious 10 year plan to recloak 5 million hectares of Papatūānuku in native forest.

The full submission is available [here](#).

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